

NATIONAL RIVER CLEANUP DAY
WAIVER OF LIABILITY AND EXPRESS ASSUMPTION OF RISK
(PLEASE READ CAREFULLY)

I agree as follows: 1. I am volunteering my services for National River Cleanup Day (“the Event”); 2. I will perform assigned tasks that are within my physical capability, and I will not undertake tasks that are beyond my ability; 3. I will not participate if under the influence of alcohol or any drug that could impair my physical or mental abilities; 4. I am familiar with the safe operation and use of machinery, equipment and tools that I may utilize in connection with the Event, and I will not undertake to use any machinery, equipment or tools with which I am unfamiliar or which I do not know how to operate safely; 5. I have received appropriate instruction regarding this Event, including appropriate safety and emergency procedures, I fully understand those instructions, and I agree, after proper inspection, to use only the supplies, tools and equipment provided by Event organizers; 6. I will perform only those tasks assigned, observe all safety rules, and use care in the performance of my assignments; 7. I specifically acknowledge that I am engaging in this activity as a volunteer and not as a State of California employee, agent, official, officer or representative, and further acknowledge that I am not entitled to any compensation, benefit or insurance coverage from Valley Water, Creek Connections Action Group, or any Event promoter, sponsor, or organizer, nor will I make any such claim.

I understand and agree that State of California, American Rivers, Creek Connections Action Group, Valley Water (Santa Clara Valley Water District), City of San Jose, City of Milpitas, City of Santa Clara, City of Sunnyvale, City of Palo Alto, City of Cupertino, City of Mountain View, City of Gilroy, Town of Los Gatos, City of Morgan Hill, City of Campbell, City of Los Altos, City of Saratoga, City of Monte Sereno, City of San Martin, Santa Clara County Parks, West Valley Clean Water Authority Program, nor any of their respective employees, officers, agents or assigns, (collectively referred to as “Released Parties”), may not be held liable or responsible in any way for any injury, illness, death or other damages to me or my family, heirs, or assigns that may occur as a result of my participation in the Event, or as a result of product liability or the negligence, whether passive or active, of any party, including Released Parties, in connection with the Event.

I understand that cleaning up inland water areas involves certain inherent risks, including but not limited to, the risks of possible injury, infection or loss of life as a result of contact with needles, condoms, metal objects, burning embers or other hazardous materials, wild animals, poisonous plants, snakes, or from over-exertion or environmental conditions, including but not limited to flooding, rock slides, sun exposure, or dangerous terrain.

No known physical or health limitation prevents me from safely participating in this Event. In Consideration for being allowed to participate, I personally assume all risks, whether foreseen or unforeseen, in connection with the Event of any harm, injury or damage that may befall me as a participant.

If I am injured during the Event, I authorize any physician licensed in California to perform such emergency treatment as he or she believes, in his or her sole judgment, may be necessary. I am over the age of eighteen and legally competent to sign this liability release, or I have acquired the written consent of my parent or guardian. I understand that the terms herein are contractual and not a mere recital, this instrument is legally binding, and I have signed this document of my own free act.

I agree to allow my image to be used in published materials and web sites that promote the programs of the Creek Connections Action Group, Valley Water and/or any programs conducted by the Released Parties. By including my email address below, I understand that the Creek Connections Action Group and Valley Water may contact me about future National River Cleanup Day events and other Public Education programs.

I HEREBY RELEASE AND HOLD HARMLESS THE RELEASED PARTIES FROM ANY CLAIM OR LAWSUIT FOR PERSONAL INJURY, PROPERTY DAMAGE, OR WRONGFUL DEATH, BY ME, MY FAMILY, ESTATE, HEIRS, OR ASSIGNS, ARISING OUT OF PARTICIPATION IN THE EVENT, INCLUDING BOTH CLAIMS ARISING DURING THE ACTIVITY AND AFTER I COMPLETE THE ACTIVITY, AND INCLUDING CLAIMS BASED ON NEGLIGENCE OF OTHER PARTICIPANTS OR THE RELEASED PARTIES, WHETHER PASSIVE OR ACTIVE.

I HAVE FULLY INFORMED MYSELF OF THE CONTENTS OF THIS LIABILITY RELEASE AND ASSUMPTION OF RISK.

Participant's Name	Date	Street Address	Phone
Participant's Signature		City, State, Zip	E-mail

IF PARTICIPANT IS UNDER 18, THE PARENT (OR GUARDIAN, IF ANY) MUST SIGN.

I am the parent or legal guardian of the above participant and he/she has my permission to participate in National River Cleanup Day. I have read and agree to the provisions stated above for myself and the participant. Further, I understand and agree that the sponsors and organizers of the Event are not responsible for supervision of minor participants and that if I allow the above minor to participate without my supervision, I assume all the risks from such participation.

Parent/Legal Guardian's Name	Date	Street Address	Phone
Parent or Legal Guardian's Signature		City, State, Zip	E-mail

DID YOU BRING YOUR OWN BUCKET/BAG, GLOVE AND/OR WATER BOTTLE TODAY? ☐ Bucket/Bag ☐ Gloves ☐ Reusable Water Bottle

DID YOU BIKE, CARPOOL, OR TAKE PUBLIC TRANSIT TO THE CLEANUP TODAY? ☐ I biked! ☐ I carpooled! ☐ I took public transit!

HOW DID YOU HEAR ABOUT THE EVENT? (please mark all that apply)

☐ Website ☐ Social Media ☐ Poster/Flyer ☐ School/Work/Community Group ☐ Friend/Word of Mouth ☐ Radio/TV ☐ Newspaper/Magazine